

For Office Use Only

CRIMINAL COVER SHEET

The criminal cover sheet neither replaces nor supplements the filing and service of pleadings or other papers as required by law. This form is required for use by the Clerk of the District Court for the purposes of initiating the criminal docket sheet. This information will not be available to the public and this document will be stored in a separate location from the case file and then destroyed within a reasonable time. A new case **will not be accepted** without a cover sheet attached. (THIS FORM MUST BE TYPED OR PRINTED LEGIBLY).

DEFENDANT’S INFORMATION

(ATTACH ADDITIONAL SHEET, IF NECESSARY)

NAME: Alexandria Catherine Montgomery-Washington

ADDRESS: 1188 Southwest Martin Luther King Boulevard
Kansas City, KS 66101-4417

PHONE: 913-555-0199 SEX:

CELL PHONE:

E-MAIL ADDRESS: alexandria.montgomery.washington@example.org

DL OR STATE ID NO: State and Number

SSN: DOB: 12/31/1979

RACE: ☐ WHITE ☐ BLACK ☐ ASIAN ☐ PACIFIC ISLAND
☐ AMERICAN INDIAN/ALASKAN ☐ UNKNOWN

ETHNICITY: ☐ HISPANIC ☐ NON-HISPANIC ☐ UNKNOWN

SEX:

ALIAS NAMES USED:

KDR TRANSACTION NUMBER:

ATTORNEYS

(FIRM NAME, ADDRESS, TELEPHONE NUMBER AND SUPREME COURT ID NUMBER)

COMPLAINT INFORMATION

VIOLATION DATE:

OFFICER:

OFFICER NO.:

ATTORNEYS (IF KNOWN)

(FIRM NAME, ADDRESS, TELEPHONE NUMBER, CELL PHONE NUMBER, E-MAIL ADDRESS, AND SUPREME COURT ID NUMBER)

The requirement that Social Security numbers be included on criminal cases is not mandatory. The number is used for purposes of identification and may be disclosed as permitted by law. This form is not considered to be a public record.

IN THE 29th JUDICIAL DISTRICT
DISTRICT COURT OF Wyandotte COUNTY, KANSAS

Alexandria Catherine Montgomery-Washington [Name]
Petitioner

Case No. 1999-CR-000001.99

vs.

THE STATE OF KANSAS
Respondent

PETITION FOR EXPUNGEMENT OF ARREST RECORD
Pursuant to K.S.A. 22-2410.

I respectfully request of the Court an order of expungement of my arrest record. In support thereof, I state the following:

1. My full name is Alexandria Catherine Montgomery-Washington;
2. My full name at the time of my arrest, if different than #1, was
_____;
3. I am a _____ [Race] _____ [Sex] born in _____ [Year of Birth];
4. I was arrested in Wyandotte County, Kansas on 1998-01-31 [Date]
by Kansas City Police Department [Law Enforcement Agency] for the crime of
Theft by deception involving a long descriptive charge ;
5. Expungement of my arrest record is proper because:

[CHOOSE ONE OF THE FOLLOWING]

- a. ☐ The arrest occurred because of mistaken identity;

OR

- b. ☐ There was no probable cause for the arrest;

OR

- c. ☐ I was found not guilty in court proceedings;

OR

- d. ☐ The expungement would be in the best interests of justice and charges have been dismissed or no charges have been or are likely to be filed;

I affirm under penalty of perjury that the statements in this Petition are accurate to the best of my knowledge and I respectfully request that the Court set this matter for hearing and grant the expungement.

Petitioner, Pro Se

Name (Print): Alexandria Catherine Montgomery-Washington

Address 1: 1188 Southwest Martin Luther King Boulevard

Address 2: _____

City, State, Zip: Kansas City, KS 66101-4417

Telephone Number: 913-555-0199

[Fax Number]: _____

[E-mail Address]: alexandria.montgomery.washington@example.org

Authority

K.S.A. 22-2410.

Notes on Use

K.S.A. 22-2410 allows any person who has been arrested in Kansas to petition the court for expungement of such arrest record. The statute is intended to apply to relatively innocent arrestees, i.e. people who were arrested but, due to a variety of reasons, were not convicted of a crime. The statute does not apply to situations wherein a person is arrested and subsequently enters into and completes a diversion agreement to avoid having a conviction on record. *State v. Yrigolla*, 38 K.A.2d 1029 to 1033, 175 P.3d 276 (2008). This form is intended for use when one has been arrested due to mistaken identity, a court has found there was not probable cause for the arrest, one has been found not guilty in court, or charges have been dismissed or are not likely to be filed.

If a person has been charged with and convicted of a crime, or entered into and completed a diversion agreement, K.S.A. 21-6614 applies to expungement of such records including related arrest records.

For Office Use Only

**ORDER OF EXPUNGEMENT OF ARREST RECORD
COVER SHEET**
(for submission to the Kansas Bureau of Investigation)

This coversheet is to be sent to the Kansas Bureau of Investigations to assist them with determining the right arrest to be expunged.

This form must be typed or printed legibly.

PETITIONER’S INFORMATION

NAME: Alexandria Catherine Montgomery-Washington

ADDRESS: 1188 Southwest Martin Luther King Boulevard
Kansas City, KS 66101-4417

SOCIAL SECURITY NUMBER: _____

☐ **MALE** ☐ **FEMALE**

DOB: 1979-12-31

RACE: ☐ **WHITE** ☐ **BLACK** ☐ **ASIAN** ☐ **PACIFIC ISLAND**
 ☐ **AMERICAN INDIAN/ALASKAN** ☐ **UNKNOWN**

ETHNICITY: ☐ **HISPANIC** ☐ **NON-HISPANIC** ☐ **UNKNOWN**

ALIAS NAMES USED:

Filing instructions - Expungement of a Kansas arrest record under K.S.A. 22-2410

Prepared for: Alexandria Catherine Montgomery-Washington

This packet covers an arrest record that did not lead to a conviction or completed diversion. It is prepared under K.S.A. 22-2410(a)(1). There is no waiting period for this petition.

Documents and order

1. File the 2025 Kansas Criminal Cover Sheet with the petition.
2. File the Kansas Judicial Council Petition for Expungement of Arrest Record with the clerk of the district court.
3. Keep the Order of Expungement of Arrest Record Cover Sheet for the KBI after the court signs the order; it helps the KBI identify the arrest record.
4. The packet includes this process guidance. A proposed granting order is not included: the Judicial Council publishes no arrest-record granting order, and local practice must be confirmed before a counsel-approved proposed order is added.

Complete every blank listed below

The platform filled only the participant and case facts it holds. The four statutory grounds are your own factual and legal choice and remain unmarked. Race, ethnicity, sex, Social Security number and aliases remain for you to complete on the official forms.

- ****Participant identification - driver's licence or state ID number**** - copy the identifier and issuing state from the card before filing
- ****Participant identification - Social Security number**** - copy the identifier only if you choose to include it, subject to the official form's own notice
- ****Alias name line 1**** - state any other name used in the record, or leave blank if none
- ****Alias name line 2**** - state any additional alias, or leave blank if none
- ****Alias name line 3**** - state any additional alias, or leave blank if none
- ****Alias name line 4**** - state any additional alias, or leave blank if none
- ****Alias name line 5**** - state any additional alias, or leave blank if none
- ****Former full name at arrest (if different)**** - state the name used at arrest when it differs from item 1
- ****Participant identity - race**** - state the race the petition should carry
- ****Participant identity - sex**** - state the sex the petition should carry
- ****Participant identity - year of birth**** - state the year of birth requested by item 3
- ****Officer name from the complaint**** - copy it from the complaint, citation or clerk's record
- ****Officer number from the complaint**** - copy it from the complaint or citation
- ****Offense row - violation date**** - copy the offense or violation date; do not substitute the arrest date
- ****Kansas Department of Revenue transaction number**** - copy it if the case carries one
- ****Participant sex**** - complete the sex field on the Criminal Cover Sheet
- ****Participant race - White**** - mark the applicable printed race control by hand
- ****Participant ethnicity**** - mark the applicable printed ethnicity control by hand
- ****Participant statutory ground - mistaken identity**** - mark exactly one ground control by hand

- **Petitioner signature** - sign the petition after checking every statement
- **Case number** - the clerk assigns one if the caption did not already carry one
- **Hearing date** - the court supplies it in its notice
- **Findings language** - the court supplies findings and signs any order

Ground and supporting record

Choose exactly one printed ground on item 5: mistaken identity; no probable cause; found not guilty; or best interests of justice where charges have been dismissed or no charges have been or are likely to be filed. Check that choice against the docket, dismissal, acquittal or no-probable-cause record before filing. If you were convicted or completed diversion, stop: K.S.A. 21-6614 is the different route. A city-ordinance arrest uses the municipal route.

Fee, notice and service

The current legal record states a \$176 docket fee under K.S.A. 22-2410(b)(3)(A), plus a supreme-court charge not exceeding \$19 per docket fee through June 30, 2030. The statutory no-fee exemption in (b)(3)(B) reaches identity-theft arrests and cases with no probable cause, not-guilty findings or dismissed charges; ask the clerk whether it applies. There is no discretionary waiver in this route.

The court sets the hearing and causes notice to the prosecuting attorney and arresting law-enforcement agency. You do not serve them. The court controls the hearing date, time, courtroom, case number if one has not been assigned, findings and signature on any order.

Stop conditions

Stop self-help and obtain legal help if the prosecutor opposes, the court sets a contested evidentiary hearing, a ground is disputed, the case involved conviction or completed diversion, the arrest was under a city ordinance, or immigration consequences are involved.

This is a prepared set of official forms and process guidance. It is not legal advice, does not decide eligibility or a statutory ground, and is not approved for live fulfillment merely because it rendered.

Route: obligation:track-only:KS:ks-22-2410-arrest_